

LEGISLATURE OF THE STATE OF IDAHO  
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 890

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO STATE GOVERNMENT; REPEALING SECTION 67-5709A, IDAHO CODE, RELATING TO THE SALE, TRANSFER, OR DISPOSITION OF STATE ADMINISTRATIVE FACILITIES; AMENDING SECTION 58-331, IDAHO CODE, TO REMOVE A CODE REFERENCE; AMENDING SECTION 67-2024A, IDAHO CODE, TO REMOVE A PROVISION REGARDING THE DISPOSAL OF STATE SURPLUS REAL PROPERTY; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-5709A, Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Section 58-331, Idaho Code, be, and the same is hereby amended to read as follows:

58-331. DESIGNATION OF SURPLUS REAL PROPERTY. Real property of the state of Idaho, the use of which by any department, officer, board, commission or other administrative agency of the state shall be terminated by law, and real property in the custody and control of any such agency which the agency shall declare to be no longer useful to or usable by it, shall be deemed surplus, and, ~~except as set forth in section 67-5709A, Idaho Code,~~ custody and control thereof shall thereupon be vested in and title be transferred to the state board of land commissioners, subject to disposition by said board in accordance with the provisions of this act.

SECTION 3. That Section 67-2024A, Idaho Code, be, and the same is hereby amended to read as follows:

67-2024A. AUTHORIZATION FOR DISPOSAL OF STATE SURPLUS PROPERTY. The state board of examiners shall authorize:

~~(1) The disposal of state surplus real property classified as "state administrative facilities" in accordance with section 67-5709A, Idaho Code, excluding real property as set forth in section 58-331, Idaho Code; and~~

~~(2) The the disposal of state surplus personal property in accordance with section 67-5732A, Idaho Code, and in compliance with the internal management policies and procedures for state surplus personal property as adopted by the board.~~

SECTION 4. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after its passage and approval.